

SENATE No. 1663

The Commonwealth of Massachusetts

PRESENTED BY:

Sal N. DiDomenico

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the sex offender registry.

PETITION OF:

NAME:

Sal N. DiDomenico

DISTRICT/ADDRESS:

Middlesex and Suffolk

SENATE No. 1663

By Mr. DiDomenico, a petition (accompanied by bill, Senate, No. 1663) of Sal N. DiDomenico for legislation relative to the sex offender registry for employees of municipal police or fire departments. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the sex offender registry.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 6 of the general laws, as appearing in the 2022 Official Edition, is hereby
2 amended by inserting after section 178E the following section:-

3 Section 178E1/2.

4 (a) If a sex offender identifies their employer as a municipal police or fire department, the
5 board shall promptly transmit a copy of the sex offender's registration data to such employer.

6 (1) If said sex offender is a municipal police officer, the board shall also transmit a copy
7 of said data to the Massachusetts peace officer standards and training commission. The
8 commission shall consider whether such data constitutes grounds for decertification.

9 (b) A municipal police or fire department shall conduct a sex offender registry
10 information check on their employees not less than once every two years.

(c) A municipal police or fire department that is informed that an employee of their department is a sex offender shall promptly:

(1) Confirm that the information received is correctly associated with an employee;

(2) review the entirety of the information received;

(3) provide the employee and any victims with an individual and separate opportunity to be heard; and

(4) issue written findings, considering the information received and the testimony of the employee and any victims, if any; and

(5) make a determination whether the employee shall face any disciplinary action, provided:

(i) for a sex offender classified as a level 3 sex offender, the municipal police or fire department shall terminate the employment of said employee.

(ii) for a sex offender classified as a level 1 or 2 sex offender, the municipal police or fire department may impose any disciplinary action, up to and including termination.

(d) The municipal police or fire department shall keep all records related to the review and determination under subsection (c) for at least 15 years.